

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Chief Judge Wiley Y. Daniel

FILED
UNITED STATES DISTRICT COURT
DENVER, COLORADO

OCT 06 2011

Civil Action No. 09-cv-00908-WYD-CBS

GREGORY C. LANGHAM
CLERK

GLORIA HUIZAR,

Plaintiff,

v.

LEPRINO FOODS,

Defendant.

VERDICT FORM

We, the Jury, being duly impaneled and sworn to try the above-entitled case, unanimously find the following answers to the questions submitted by the Court as follows:

Do you find from a preponderance of the evidence:

1. That the Plaintiff was subjected to a hostile or abusive work environment because of her sex?

Answer: Yes or No No

2. That such hostile or abusive work environment was created by a supervisor with immediate or successively higher authority over the Plaintiff?

Answer: Yes or No No

3. That the Plaintiff suffered damages as a proximate or legal result of such hostile or abusive work environment?

Answer: Yes or No No

Note: If you answered "No" to any one of the preceding three questions, then you need not answer the remaining questions.

4. That the Defendant exercised reasonable care to prevent any sexually harassing behavior in the workplace?

Answer: Yes or No _____

5. That the Plaintiff unreasonably failed to take advantage of any preventive or corrective opportunities provided by the Defendant to avoid or correct the harm?

Answer: Yes or No _____

Note: If you answered "Yes" to both questions 4 and 5, then you need not answer the remaining questions.

6. That the Plaintiff should be awarded damages to compensate for emotional pain and mental anguish?

Answer: Yes or No _____

If you answer is "Yes," in what amount? \$_____

7(a). That a higher management official of the Defendant acted with malice or reckless indifference to the Plaintiff's federally protected rights?

Answer: Yes or No _____

7(b). If your answer is "Yes," that the Defendant itself had not acted in a good faith attempt to comply with the law by adopting policies and procedures designed to prohibit such discrimination in the workplace?

Answer: Yes or No _____

7(c). If your answer is "Yes," what amount of punitive damages, if any, should be assessed against the Defendant?

\$ _____

PLEASE SIGN AND DATE THIS VERDICT FORM.

Dated this 6th day of October, 2011.

Foreperson
